

Branch Enterprise Portfolio (COT3)

Date (YYYY-MM-DD) 2026-05-06

Section A – Client information

Business name ADVISORY CONNECT (PTY) LTD

Enterprise identity type Private Company

Enterprise identity or registration number 2026/289329/07

Accounts required

BUSINESS CURRENT ACCOUNT

0000010275994951

Investment information

Capital disposal account number

Bank

Branch code

Interest frequency

Interest Payment Date

Interest disposal account number

Bank

Branch code

Interest Rate

Investment Term

Act type (If applicable)

BizLaunch Package
☐
☐

Internet Banking
Debit Card

☐
☐

Cheque Card
Discounted point-of-sale device

☐
☐

MyUpdates
Discounted short-term insurance

Additional products/account management services required
☐
☐
☐

Business Online
Lending Facilities
UCount Rewards for Business (small enterprises only)

☒
☐

Internet Banking
Savings and Investment

☐
☐

Forex Services
Corporate Card

☐
☐

Vehicle and Asset Finance
Point of Sale Device

Section B – Applicant information

Shareholding/Ownership/Empowerment status (Please choose one block only)
Required for statistical purposes by the Financial Sector Charter

☐

100% Black

☐

100% Coloured

☐

100% Indian

☐

100% Asian

☒

96-100% White

☐

Greater than 50% Black/Coloured/Indian/Asian

☐

Greater than 30% Black/Coloured/Indian/Asian woman

☐

Greater than 25% Black/Coloured/Indian/Asian

☐

Greater than 5% Black/Coloured/Indian/Asian

Type of activity expected on the account (for example cash deposits and debit orders)

Point of Sale Transactions

Debit Orders

Deposits

Withdrawals

Electronic Payments

Foreign Exchange Transactions

Other

Card Purchases

Number of employees/members/directors 0000002

SB

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Initial(s)

Section C – Related Parties
Natural persons
These are authorised persons, agents, secondary cardholders, guardians of minors, members of close corporations or non-profit companies, partners in a partnership including silent partners, persons who exercise executive control in a partnership, directors of companies including all directors authorised to act on behalf of the company, shareholders of companies with 10% or more of the voting rights, trustees of a trust, beneficiaries of a trust, founders of a trust, managers of affairs of an external company, prescribed officers or officials of domestic companies.
Credit and fraud check consent
I/We, the related party/ies, as shown in section C of this document, give consent for the Bank to make enquiries about my/our credit record with any credit reference agency and any other party to confirm any or all of the information provided by me/us. I/We further give consent for the Bank to carry out identity and fraud prevention checks and share information relating to this application through the Southern African Fraud Prevention Service.

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Record details of Related Natural Persons						
Full names	% shareholding where relevant	Identity/Passport number	Country of issue of Identity/Passport	Capacity	Signature	Signatory on account (Yes or No)
1. CHRISTOPHER MIKHAIL ZEEMAN	50.000%	9310215018080	South Africa	Contact Person Rel.ship Shareholder Relationship Business Representative Director	<i>christopher.zeeman@vibinik.co.za</i>	Y
2. STEWART DOUGLAS BAILIE	50.000%	8809265149084	South Africa	Shareholder Relationship Business Representative Director	<i>Stewart Bailie</i>	Y

Initial(s)

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Juristic entities					
These are legal entities/businesses that are close corporations, partnerships, trusts, companies, other legal entities that are shareholders with 10% or more of the voting rights, partners including joint ventures, trustees, beneficiaries, and founders in respect of the applicant.					
Record details of Related Juristic Entities					
Registered name/name of trust/ other legal entity	% shareholding	Registration number/ Trust number	Registered address/ Master's address (Trusts)	Head office address (if multiple offices)	Physical business address

Initial(s)

SB

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Section D – Signing Arrangements (Please make sure that all authorised persons' details are included under Section C)

As shown in Section C of this document by means of a Y or Yes under column "Signatory on account", we confirm that the instruction to sign (for example, any two to sign jointly, any one to sign alone when generally operating the Account(s)) is as follows:

ANY ONE TO SIGN ALONE

Bank statements

☐

Send to postal address

Other

EMAIL

Frequency

☐Monthly

☐Weekly

Other

VAT invoice

☐Daily

☐Monthly

MyUpdates

☒

Legal Practitioners Fidelity Fund
(only applicable to Attorney accounts)

☐Northern Cape

☐Limpopo

☐Sweeping facility

☐Eastern Cape

☐Mpumalanga

☐No sweeping facility

☐Western Cape

☐Gauteng

Practice number

☐Kwazulu Natal

☐Free State

☐North-West

00140889 2024-06

The Standard Bank of South Africa Limited (Reg. No. 1962/000738/06) An authorised financial services and registered credit provider (NCRCP15).

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Section E - General

Resolution

At a meeting of the directors/members/trustees/committee or partners of (insert name of Company/Close Corporation/Trust/Body Corporate/Partnership Informal Body) **ADVISORY CONNECT (PTY) LTD (Business)**

held at (place) **PRETORIA**

on date (YYYY-MM-DD) **2026-05-06** it was resolved that the Business shall open a current account and/or

(specify type of account) **CURRENT** with The Standard Bank of South Africa Limited **(Bank)**.

The authorised persons specified in Section C of this Application Form dated (YYYY-MM-DD) **2026-05-06** by means of a **Y** or **Yes** noted under column "Signatory on account" are authorised in terms of this resolution to act as signatories on the Account(s) in accordance with the instructions in Section C of this form dated (YYYY-MM-DD) **2026-05-06**

The authorised persons are, subject to the signing arrangement, authorised to:

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take all steps necessary to establish or further develop a relationship with the Bank and any of its subsidiaries on behalf of the Business and open a Business account(s);

execute and issue any securities that the Bank may request;

apply for any cash management products the Bank may provide and implement;

execute the facsimile/email indemnity, prepared by the Bank, that has been submitted and approved by this meeting;

negotiate and execute any transactional products or services that the Bank may offer and implement;

open, accept and approve any banking accounts with the Bank as may be required;

negotiate, settle and sign any documentation that the Bank may require;

increase or decrease any limits on the Card(s) linked to this Account(s), including electronic account payment limits and daily and monthly cash ATM withdrawal limits (subject to the available balance on the Account(s));

apply for Card and replacement Card(s) linked to the account(s) (where a Card or replacement Card is issued, the cardholder is authorised to sign alone);

apply for bank statements and bank reports, stop payments and certificates/advices of Account balances on the instruction of any one signatory, which may be delivered to any address the signatories choose;

apply for the issuance and/or endorsement of any instrument (e.g. guarantees, availed bills of exchange and letters of credit) on behalf of the Business and give authorisation for any indebtedness of the Business to the Bank resulting from the issuance or endorsement of such instruments to be debited to the Account or any other accounts held by the Business with the Bank, irrespective of any limits in respect of such accounts or the current balance on such accounts;

sign the necessary marketing consent clauses;

provide the Bank with the electronic Indemnity contemplated in this Application Form;

provide the Bank with any instructions required for carrying out any transaction on the Account(s).

close the Business Account(s) where necessary;

appoint new authorised persons, whose names will be supplied to the Bank in writing before the appointment commences;

apply for and operate UCount Business Rewards; and

take all such steps as may be necessary for giving effect to the provision of the resolutions contained herein.

This authority will remain of full force and effect until cancelled in writing by the Business.

I/We understand and accept the risks associated with the authority granted in the above clauses.

Certified that the resolution above was passed by the board of directors/members/trustees/committee or partners of the Business at a meeting held at (insert place)

Signed by the chairperson of the meeting **OR** the Company Secretary

Stewart Bailie

Date (YYYY-MM-DD) **2026-05-06**

Warranty

I/We warrant to the Bank on the date of signature hereof and for the duration of the Agreement that:

I/we accept that the opening and operation of my/our Account(s) are subject to the Bank's terms and conditions, a copy of which has been given to me/us and has been read, understood and accepted by me/us;

I/we have disclosed any requirements in my/our Constitutive Documents that have the effect of amending any alterable provisions of the Companies Act and I/we have taken all steps, fulfilled all formalities and obtained all approvals required by my our Constitutive Documents, the Companies Act and all other legislation and regulations applicable to the Agreement and my/our business activities;

the terms of the Agreement do not conflict with and are not in breach of the terms of any other agreement, undertaking or act that is binding on me/us;

all information that I/we provided to the Bank in connection with the Agreement is true, complete, current and accurate; and

I am/we are not in default in respect of any of my/our material obligations in connection with the Agreement and that no default has occurred.

Indemnity

Initial(s)

00140889 2024-06

The Standard Bank of South Africa Limited (Reg. No. 1962/000738/06) An authorised financial services and registered credit provider (NCRCP15).

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To the extent permitted by law, I/we hereby indemnify the Bank (hold the Bank harmless) against any loss or damage suffered by the Bank as a result of the Bank's reliance on any warranty, representation or information given by me/us in relation to the Agreement.
I/We understand the Warranty and Indemnity given in the above clauses.

Stewart Bailie

Signed

Date (YYYY-MM-DD) 2026-05-06

For (insert name of business, company, body) ADVISORY CONNECT (PTY) LTD

To the extent permitted by law, I/we hereby indemnify the Bank (hold the Bank harmless) against any loss or damage suffered by the Bank as a result of the Bank's reliance on any warranty, representation or information given by me/us in relation to the Agreement.
I/We understand the Warranty and Indemnity given in the above clauses.

charlyphelane@advisora.co.za

Signed

Date (YYYY-MM-DD) 2026-05-06

For (insert name of business, company, body) ADVISORY CONNECT (PTY) LTD

Initial(s)

SB *ck*

Section F - Electronic Instruction Indemnity (Indemnity)

I/We request the Bank to act on any electronic instructions I send to it with regard to the Account(s):

☒ X

Yes

☐

No

Please consider the clauses that follow carefully as they limit the Bank's liability and constitute an assumption of risk by you.

I/We, the undersigned, DIRECTORS OF ADVISORY CONNECT (PTY) LTD

herein represented by

(name(s) of representatives)

(in capacity as)

CHRISTOPHER MIKHAIL ZEEMAN

DIRECTOR

STEWART DOUGLAS BAILIE

DIRECTOR

(being duly authorised by a resolution passed on date 2026-05-06 (YYYY-MM-DD) a certified copy of

being duly authorised by a resolution dated 2026-05-06 (see certified copy attached hereto) have requested you, the Bank, to act in accordance with any electronic instructions furnished or reasonably appearing to have been furnished to the Bank, including emails and instructions processed on any digital media platform by us or by any third party purporting to be duly authorised by us, in respect of the Account(s) (Instructions). You acknowledge that electronic media such as emails and digital platforms are not secure or error-free channels of communication and that it is not possible for you to check the authenticity of all Instructions.

By signing this indemnity, I/we, on behalf of the Business:

- 1 hereby authorise you to accept and act on any Instruction/s that the Bank would ordinarily accept if the Instructions were presented in an original written format;
- 2 agree that Instructions may, as a result of the malfunction of equipment, the distortion of communication links and so on, be different from those intended or sent, and that the Business will be bound by them;
- 3 waive any rights we may now or in the future have against you for direct or indirect losses or damages that we may suffer because you acted on any Instruction and we indemnify you against any claims, demands or actions made against you or losses or damages suffered by you because you acted, or declined to act, in respect of the Account(s), on any Instruction but not against losses arising from proven unlawful, grossly negligent or fraudulent acts of the Bank;
- 4 agree that you are not liable for errors or delays in transmissions, or for misinterpretation on receipt, or for any loss or damage resulting from your allowing this arrangement except losses and damage arising from the proven unlawful or fraudulent acts of your employees;
- 5 agree to implement and follow any procedures and/or restrictions you may impose on us in respect of the sending of Instructions to you;
- 6 agree that in respect of Instructions regarding the transfer of money, whether the transfer is from the Account(s) to any other account in our name or to any account in the name of any third party at the Bank or at another bank, same-day value may be given only if the Bank receives the Instruction before the relevant cut-off time;
- 7 agree that you will not be obliged to act on any Instruction and that you may at any time, on written notice sent to us, withdraw from the arrangements made in this Indemnity;
- 8 this Indemnity will remain on file until the Business Account(s) is/are closed.

SB

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Initials

Signature			
Signed at (Place) Enterprise Portfolio (COT3)		on this	day of (YYYY)
and duly authorised for and behalf of (Business). ADVISORY CONNECT (PTY) LTD			
Name of authorised signatory		CHRISTOPHER MIKHAIL ZEEMAN	
<i>Christopher Zeeman</i>			
Signature		Identity number	9310215018080
Name of authorised signatory		STEWART DOUGLAS BAILIE	
<i>Stewart Bailie</i>			
Signature		Identity number	8809265149084
Witnesses			
Name of First witness		Signature	
Name of Second witness		Signature	

SB

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Initials

Section G- Confirmation of applicant

No advice was given. I/we confirm that the product(s) was sold to me/us:

☐

By execution only

☒

By factual information only

Signed

Date 2026-05-06

Signed

Date 2026-05-06

Name	Signature	Capacity	Date (YYYY-MM-DD)
CHRISTOPHER MIKHAIL ZEEMAN	<i>christopher.zeeman@liblink.co.za</i>	Contact Person Rel.ship Shareholder Relationship Business Representative Director	2026-05-06
STEWART DOUGLAS BAILIE	<i>Stewart Bailie</i>	Shareholder Relationship Business Representative Director	2026-05-06

Approval (for bank use only)**KYC/FICA requirements, Bank Reports, Bank Statements and Entity Registration/Fraud Checks.**

Business address verified

☒

Yes

☐

No

Premises visited

☐

Yes

☒

No

Business address visited:

Date visited (YYYY-MM-DD)

Premises verification done by 0241217

Signature

Verification documents required for the Account holder

Does this account for part of a group

☐

Yes

☒

No

If yes, group number

Bank Reports/Statements/KYC

Fraud Check reference number

SEAN NYAKAMA

A241217

Completed by

Employee number

Checked by

Employee number

*SB**ck*

Initials

Thank you for choosing Standard Bank. These are the general terms and conditions of your relationship with us, and they apply to all banking products and services that we offer.

We want our interactions with you to be fair and transparent, so we've designed our agreements to be clear and understandable. If there's anything you would like us to explain, please tell us. **Pay special attention to the clauses in bold as they may limit our responsibility or contain important information.**

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*SB**ck*

Initial(s)

1 Introducing the agreement

1.1 Parties to the agreement

The agreement is between:

- a) you, our client. (the person who applies for a product with us or in whose name a product is opened); and
- b) us, The Standard Bank of South Africa Limited (Registration Number 1962/000738/06).

1.2 Documents that make up the agreement

The agreement is made up of the following documents:

- a) Your application to us for a product.
- b) Any approval letter that we send to you.
- c) These general terms and conditions, which apply to all products that you have with us.
- d) The product terms and conditions for a specific product.
- e) Any product information documents for a specific product.
- f) The most recent version of the pricing guide on www.standardbank.co.za.

1.3 Conflicts between terms and conditions

The general terms and conditions apply to all our products. If there is a difference between these terms and conditions and any product terms, the product terms will apply in respect of the product only.

1.4 If you change your mind (cool off) – direct marketing sales only

If you applied for or bought a product after being contacted by direct marketers of Standard Bank, you have five business days from the date on which the product was opened in your name to cancel the product and end the agreement. We refer to this as a cooling-off period. If you cancel the product or end the agreement during the cooling-off period, we will not charge fees.

1.5 Contact us if you have any questions

If you have any questions about the agreement, please contact our Voice Branch as follows:

- By phone on 0860 123 000; or
- By email at information@standardbank.co.za.

If your question is about a specific product, please follow the process set out in the product terms and conditions.

2 Definitions and rules of interpretation

2.1 Definitions

The words and expressions below have the meanings set out next to them unless the context clearly indicates a different meaning.

applicable laws	means any of the following: • all national, provincial, local and municipal legislation or subordinate legislation, ordinances, regulations or by-laws; • all regulations, policies, directives, position papers, rules or other instructions of any relevant regulatory authority; and • the common law, judgment, order or decree.
business day	means any day of the week except a Saturday, a Sunday or an official South African public holiday.
loss	means an amount that a person is legally responsible for, including penalties, fines, damages, expenses such as legal fees. Loss includes direct, indirect, and consequential damages.
products	means the various banking and other products, services and facilities that we offer to our clients.
regulatory authority	means a person who has authority over you, us or the activities covered by the agreement, and includes: • any national, municipal, provincial, other local or administrative government, authority or department; • any agency, tribunal, commission, regulator, self-regulatory body or similar body (such as the South African Reserve Bank, the Information Regulator and the Payments Association of South Africa) and any other body authorised in its place.

2.2 Rules of interpretation

Reference to Standard Bank	Any reference to Standard Bank is also a reference to our successors-in-title and assigns.
Headings	Headings are aids to reading and understanding. They are not terms or conditions themselves and they do not limit or extend the meaning or application of the terms or conditions.
Singular and plural	Words in the singular include the plural. Words in the plural include the singular.
Including	The words 'include', 'includes' and 'including' must be interpreted as introducing an example list and not limiting the list or excluding additions to it.
Reference to persons	Where we refer to a person, we mean either an individual, natural person or a juristic person (for example, a company, close corporation, trust or partnership) or both, depending on the context.
Reference to laws	When there is reference to an applicable law or a section of such a law, we mean that law or that section of the law as amended, repealed or replaced.

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Initial(s)

3 Doing business with you

3.1 Tell us about changes to your finances

You must write to us immediately if your financial circumstances change and could create the risk that you might not be able to pay back money that you owe us.

3.2 We may check if you can afford to pay back credit

We need to know if you can afford any credit that we give to you. You must give us information about your finances any time we ask for it. We may also do the following:

- a) Ask a credit reference agency about your borrowing history. (We do not need to ask for your permission to make these enquiries.)
- b) Give credit reference agencies updates about your conduct relating to a product and its terms and conditions.

3.3 We may ask you to give us security for your debt

We may ask you to give us security or undertakings for amounts that you owe us. For example, we may ask you to cede (hand over) your rights to the money in one or more of your products to ensure that you can repay amounts that you owe us. This type of security arrangement is known as a 'cession in security.'

3.4 We may use a positive balance in one account to set off (settle) a negative balance

If you do not repay money that you owe us by its due date in one account, we may use money from any of your other accounts to pay off the debt if the law allows it. This is known as 'set-off.'

Before we apply set-off to any of your products, we will let you know that we are doing it and we may put the relevant amount on hold while we discuss the matter with you. Your statements for the relevant products will show the set-off.

4 Giving instructions to us

4.1 Beware: email and phone instructions can be intercepted

You can ask us to accept instructions from you by phone or email. If you do this, we will ask you to sign an indemnity form because using your phone and email is not as safe as using the Mobile App or online banking or going into a branch. **This means that we may receive instructions that appear to be from you but that you did not authorise (for example, another person or an automated device may intercept your email or phone communication and change it without your knowing it).**

We act on all instructions that appear to come from you. It is your responsibility to make sure that we have received instructions that you gave by phone or by email.

4.2 We may be unable to process an instruction

We may be unable to process your instruction in the following instances:

- a) If we think the instruction is unclear, conflicting, incorrect, incomplete or unauthorised.
- b) If processing the instruction would or might cause us to breach our policies or any applicable laws.
- c) If you fail to comply with our reasonable requests for information, documents or authorisations.
- d) If processing it may result in an unauthorised credit.
- e) If we have a valid reason for doing so.

If we cannot process your instruction, we will notify you as soon as we can.

4.3 We may delay or suspend a transaction

We may delay or suspend payment of a transaction amount in the following cases:

- a) Where the amount is above our risk detection parameters (which are our own confidential measures that we use to categorise, evaluate and prioritise risks).
- b) If we believe that the transaction, or the batch it is in, is invalid or linked to any prohibited activities or may harm someone.

We are not responsible to you for any losses you may suffer if we take any action under this clause.

4.4 Stopping, reversing or cancelling a transaction

We will try to stop, reverse or cancel a transaction when you ask us to but we are not responsible if we cannot do so. You agree to pay us for any costs we may incur in trying to stop, reverse or cancel a transaction.

5 Promises that you give to us (warranties)

We will treat the information you give to us as accurate and true when doing business with you. If it is not accurate and true, we may have a claim against you for losses that we might suffer.

5.1 If you are an individual

If you are an individual, you warrant that:

- a) All information that you give to us is correct and complete.
- b) You are complying with all applicable laws.
- c) You are not in default in respect of any of your obligations under any other agreement.
- d) You are not a sanctioned entity as defined in section 12 below.
- e) You are not aware that you are being investigated for any activities relating to sanctions as defined in section 12 below.
- f) If you become aware that you are being investigated for any activities relating to sanctions, you will tell us immediately in writing..

5.2 If you are conducting a business

If you are conducting a business, you warrant that:

- a) All information that you have given to us is correct and complete.
- b) You are complying with all applicable laws.

SB

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Initial(s)

- c) You are not in default in respect of any of your obligations under any other agreement.
- d) You have the authority to enter into this agreement and to perform your obligations under it.
- e) You conduct business at the required standard in terms of confidentiality, security and reputation.
- f) You have obtained and will maintain all consents, registrations, filings, certificates, licences, approvals, permits and insurances that you are required to have.
- g) You are not a sanctioned entity as defined in section 12 below.
- h) You are not being investigated for any activities relating to sanctions as defined in section 12 below.
- i) If you are being investigated for any activities relating to sanctions, you will tell us immediately and in writing..

5.3 Consequences of breaking your promises (individuals and businesses)

- a) If we know or suspect that you have broken any of the warranties in this clause or that sanctions may be imposed on you, we may immediately do either or both of the following:
 - Cancel or stop access to any products that we provide to you.
 - Cancel this agreement and any other relationship we have with you.
- b) **We are not responsible to you for any loss you suffer if we cancel this agreement because you broke your warranties or sanctions were imposed on you.**
- c) You must pay us for any loss that we incur because of the following:
 - You broke any of these warranties.
 - A sanctioning body seizes, withholds or blocks money.

6 Protecting your personal information

- 6.1 We understand that your personal information is important to you. By using our products, you acknowledge that your personal information will be processed by us and (if necessary) by third parties according to our privacy statement, which is in line with all applicable laws relating to the protection and processing of personal information.
- 6.2 It is your responsibility to read and understand the contents of the privacy statement, which is available on our website at www.standardbank.co.za/privacy, or you can ask us to email it to you.
- 6.3 We will maintain the confidentiality of your personal information and we will implement security safeguards to protect your personal information as set out in the privacy statement.
- 6.4 Our privacy statement is an important part of these terms and describes what personal information is; what information we process; how we process your information; where we collect your information; who we share your information with; your rights as a data subject and the complaints contact details of both Standard Bank and the regulatory authority.

7 Fees, charges, interest and taxes

7.1 Refer to the online pricing guide for fees and charges

You must pay the fees and other charges that apply to your products. These fees and charges are in the pricing guide on our website except in the following instances:

- a) We agreed different fees with you.
- b) The product terms specify different fees.

We review our fees and charges regularly and annually publish a new pricing guide that is valid from 1 January to 31 December. If there is a change to our fees, interest or other charges during the year, we will let you know in good time before the changes apply. Other charges include taxes, duties and penalties.

7.2 You must pay the costs for recovering money from you

You must pay the costs that we incur to recover outstanding amounts under this agreement, including:

- a) our reasonable costs and charges for collections and recoveries, such as collection commission, tracing fees, and default administration charges; and
- b) the actual legal costs and fees that our attorneys charge us using the attorney-and-own-client scale.

7.3 We pay interest only where we specify it

We pay interest on a product only where interest is specified as a feature of that product. All interest rates quoted are per annum. If our product terms and conditions allow, we may change the interest rates we pay to you. Any changes will apply immediately.

7.4 We don't give tax or legal advice

We don't give tax or legal advice as part of this agreement. To understand the tax implications of any product, or for any other tax or legal advice, you should contact your tax practitioner or a lawyer.

8 When our responsibility is limited or excluded

Neither we, nor any third party that we are accountable for, will be responsible for any loss resulting from:

- a) Our closing, suspending access to or restricting activity on any of your products or accounts.
- b) Our complying with any applicable laws.
- c) Any circumstances beyond our control, for example:
 - i. malfunction of any of our equipment, terminals, ATMs, and systems;
 - ii. power cuts, service interruptions and outages that affect your access to a product;
 - iii. unusually severe weather, earthquakes, hurricanes, floods, fires;
 - iv. epidemics or pandemics;
 - v. labour action such as strikes, marches and protests;
 - vi. riots, looting, civil commotion or unrest;
 - vii. any unlawful activity by a third party; or
 - viii. any restriction imposed or other action taken by a sanctioning body or a regulatory authority.

9 Handing over rights and obligations (cession and assignment)

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Initial(s)

9.1 You must first get our consent in writing

You must not hand over (cede) your rights or delegate (assign) your obligations under this agreement, including your rights as the holder of an account or the right to payment of a credit balance on your account, to another person without first obtaining our consent in writing, on such terms as we require. (The person that you cede rights to is referred to as a 'cessionary' and the person that you assign obligations to is an 'assignee'.)

We alone may decide whether to grant or withhold our consent to a cession or assignment. If we give our consent, we may update this agreement to include extra rights for us or to impose extra obligations on the cessionary or the assignee. By accepting the terms and conditions, you agree to help us to negotiate changes with that cessionary or assignee if we consider the changes necessary.

9.2 We don't need your consent to hand over rights or obligations

You agree that we may cede any or all of our rights or assign any or all of our obligations under this agreement to any other person. We do not have to inform you of any cession or assignment unless the law requires us to do so.

The cessionary and the assignee have the right to exercise all the rights or obligations (where applicable) that we have under this agreement, including the right to process your personal information.

10 You must comply with all applicable laws

The Financial Intelligence Centre Act 38 of 2001 (FICA) requires us to have specific, up-to-date information about you and any people or entities related to or associated with you. This is for your and our protection against money laundering, terrorist financing and other illegal activities involving money. We will ask you for the information when you apply for a product and at other times during our relationship with you, where we will ask for the information by email, SMS or through any other form of communication that we may choose. We may check that information for accuracy and completeness.

If you do not give us the information or documents we ask for, we may:

- a) refuse your application, or
- b) immediately suspend or close any product that you have with us.

11 Financial crimes and prohibited activities

11.1 Preventing financial crimes

We are committed to conducting our business with integrity and carrying out our legal, regulatory, social and ethical responsibility to:

- a) protect our clients against financial crimes; and
- b) combat financial crimes, such as money laundering, financing terrorism, tax evasion, bribery and fraud..

11.2 You must not engage in prohibited activities

You must not engage in any prohibited activities or use any of your accounts with us under this agreement for any prohibited activities.

Prohibited activities include the following:

- a) Any activities that do not comply with applicable laws.
- b) Illegal or terrorist activities, or the financing of these activities.
- c) Financial crimes, including money laundering, bribery, tax evasion, corruption or fraud, or any payments that improperly advantage any person.
- d) Any activities that sanctions apply to.

You warrant to us on the date on which you sign this agreement and on every day that the agreement is in place that:

- **you are not involved in any illegal or terrorist activities; and**
- **none of your accounts with us are being used for any prohibited activities including those referred to above.**

11.3 Consequences of breaking your warranty

You agree that, if you breach your warranty:

- a) you will pay us for any loss that we suffer as a result of your breach of; and
- b) you will pay the Group for any loss that it incurs as a result of your breach; and
- c) you will pay for such loss immediately on demand by us and/or the Group.

This clause provides a benefit for the Group, which is not a direct party to this agreement. The Group may accept the benefit at any time and in any manner allowed by law.

11.4 We may investigate suspected prohibited activities

We may conduct identity and fraud checks on you, and we may share information about your application for and you conduct on any product with any of the following:

- a) Any regulatory authority.
- b) The South African Banking Risk Information Centre (SABRIC).
- c) The Southern African Fraud Prevention Service (SAFPS).
- d) Any person involved in fraud prevention or law enforcement.
- e) Affected third parties.

You must help us, at your expense, to investigate any prohibited activities, for example by giving us all information we ask for relating to the prohibited activities. By accepting the terms and conditions, you give consent for us to share the relevant details of any suspected or proven prohibited activities with any person listed above.

11.5 We may suspend your access to the product and your accounts

If we suspect that an account or a product has been or is being used for, or is linked to any prohibited activities, we will take immediate action.

We do not have to give you notice of the action we will take. We may do any or all of the following:

- a) Restrict activity on the relevant account or product so that you cannot transact on it.
- b) Suspend access to any of your accounts or products or your money.
- c) Secure the money related to the prohibited activities and transfer it into a suspense account.
- d) Take any of these actions for as long as is necessary to protect our rights and those of any affected third parties.

12 Sanctions and sanctioned entities

12.1 Definitions for this section

sanctions means measures imposed or restrictions set by a sanctioning body, including diplomatic, travel, trade or financial sanctions or embargoes.

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sanctioning body	means any sanctioning regime that we recognise, including: • the United Nations; • the European Union; • the Council of Europe (founded under the Treaty of London, 1946); • the Government of the United States of America; • the Office of Foreign Assets Control of the US Department of Treasury; • the US Department of Commerce; • the US State Departments or the US Department of the Treasury; • the Government of the United Kingdom and His Majesty's Treasury; and • the Government of the Republic of France and the French Ministry of Finance.
sanctioned entity	means a natural person, an organisation or a country that any sanctions apply to or that appears on a sanctions list, including all the following: • A country that is on a sanctions list, its ministries, departments and agencies and any other governmental organisations. • Any natural person who owns or controls a juristic person (for example, a company, trust or organisation) that is on the sanctions list. • Any juristic person that it owns or controls and that is on the sanctions list. In this context, 'owns' means holding any percentage of ownership or beneficial interest; and 'controls' means the ability to control the business or policy of the juristic person, whether directly or indirectly, through the voting of shares, by appointing directors or by any other means).
sanctions list	means any list of sanctioned entities published by a sanctioning body, as updated from time to time.

12.2 Using or making available any product to benefit a sanctioned entity

You must not use or make available any product to help or benefit a sanctioned entity.

12.3 You warrant that you are not a sanctioned entity

You warrant to us on the date on which you sign this agreement and on every day that you are our client that you are not a sanctioned entity or being investigated for any activities relating to sanctions.

12.4 You must not engage with sanctioned entities

You must not:

- Use your loan account or your current account or any accounts that you have with us to finance a sanctioned entity.
- Use the money that is in any of your accounts or that is available to you in respect of any agreement that you have with us –
 - in a country that is subject to any sanctions;
 - to finance the activities of a sanctioned entity;
 - for another person or organisation that intends to use the money to finance the activities of a sanctioned entity.
- act in any way that helps or benefits a sanctioned entity.

12.5 Consequences of breaching your warranty

- You agree to pay us for any loss that we suffer as a result of your breach of this warranty; and
- You agree to pay the Group for any loss that it incurs caused by your breach of this warranty; and
- You agree to pay immediately on demand by either or both of us and the Group.

This clause provides a benefit for the Group, which is not a direct party to this agreement. The Group may accept the benefit at any time and in any manner allowed by law.

13 We may change the terms of the agreement

We may change the terms and conditions of this agreement and the changes will always be in line with applicable laws. We will tell you about the changes through our website, your product or our Mobile Banking App, by SMS, by email or through any other form of communication that we may choose. If the change will have a significant effect on you, we will let you know at least 20 business days before it comes into effect. If you don't agree with a particular change, you must stop using the product before the change happens. You will then have limited access to your product, but you can contact us to discuss a more suitable product for your needs.

You are not permitted to change any of the terms of the agreement or any part of a term. If you continue to use the product after we change the terms of the agreement or any part of a term, we will assume that you have accepted the change.

14 Closing an account, cancelling a product or ending the agreement

14.1 If you want to close an account, cancel a product or end your relationship with us

- Give us notice in writing
If you decide to close an account or cancel a product or end your relationship with us, you must give us notice before you do it. Check the relevant product terms and conditions for the amount of time the notice must be. If the product terms and conditions do not give a specific time, then you must give us five business days' notice.

You can do this by:

- contacting your relationship manager or banker; or
- going into a branch; or
- calling our voice branch (the details are set out below); or
- using any of our digital channels, such as our website or the Mobile Banking App.

We will start the process of closing the account, cancelling the product or terminating the relationship with you once we receive the notice. We will communicate with you where necessary during this process or if we are unable to comply with your request. We will notify you once your account has been closed or a product has been cancelled, and you must not assume that your account has been closed or that a product has been cancelled until we confirm this.

- Give us documents that we require
We may also require proof of your identity and, if you are a business, a formal resolution from the business.
- Your FICA information must be up to date

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We must be able to verify your FICA information before you can withdraw money from your account or any other product you have or before we need to pay you any money that we owe you.

To end the relationship, you must close all your accounts

If you want to end your relationship with us, all your accounts or products with us must be closed or cancelled.

14.2 If we want to close an account, cancel a product or end our relationship with you

- a) We will give you notice and reasons in writing.
We may close any account, cancel any product or terminate our relationship with you, by giving you reasonable prior notice in writing, using the last contact details we have on record for you. The reasons we give you for any actions we take will be in our sole discretion and may include any of the following:
- We are compelled to do so by applicable laws or by a regulatory authority or we have the right to do so as agreed with you contractually.
 - You are in breach of applicable laws or you have not remedied a default under any terms and conditions that apply to you.
 - Your conduct or the conduct of any person you are related to, including inappropriate behaviour towards our staff, does not align with Standard Bank's values, or a continued relationship with you may expose Standard Bank to reputational or operational risks.
 - We know or have reason to suspect that you are engaging in prohibited activities.
 - You gave us false or misleading information or you haven't given us all the information we need from you to comply with applicable laws.
 - Despite our writing to you to let you know that you are no longer using an account or a product and giving you a reasonable opportunity to start using the account or product again, you fail to do so.
 - You no longer qualify for an account or product according to Standard Bank's specifications and the applicable terms and conditions.

If we intend to close your account or terminate our relationship with you, we will communicate with you, where necessary, during this process and we may allow you an opportunity to make representations before we do so. We will consider all representations made, but we retain the right to make the final decision. If we request you to do so, you must pay us all amounts you owe us by the date in the notice.

- b) When we will not give you reasons
We may under certain circumstances exercise our right to close or cancel any of your accounts or products or end our relationship with you immediately without giving you reasons. The circumstances include the following:
- If we believe or have a reasonable suspicion that a product is being used for any prohibited activities.
 - If we believe or have a reasonable suspicion that your operation of any product directly or indirectly benefits a sanctioned entity.
 - If we are notified that you are a sanctioned entity.
 - If we must do so in terms of applicable laws.

14.3 Reallocating account numbers

- a) Once your account is closed, we may reallocate the account number after a certain period. When you close your account must make sure that you do the following:
- notify everyone who needs to know of the change in your banking details; and
 - cancel all debit orders or stop orders linked to your closed account.
- b) **We are not responsible to you for any losses you may suffer if we reallocate your account number and you did not notify everyone who needs to know of the change in your banking details.**

15 Default, resolving disputes and legal proceedings

15.1 A manager's certificate is proof of facts

A certificate signed by one of our bank managers that sets out the amount that you owe us, the rates of interest that apply, and any other fact relating to the agreement, is enough proof of those facts unless you can prove otherwise. This is called prima facie proof. We do not need to prove the authority, qualification or appointment of the manager who signs the certificate.

15.2 If you default under the agreement

If you default on any of your obligations under the agreement and don't fix the default after we have given you notice to do so, we may take whatever steps we can in law. If the agreement falls under the National Credit Act 34 of 2005, we will follow the process set out below:

We will tell you about the default in writing

We will send you a letter to tell you about the default and ask you to:

- a) fix the default by a date we give; or
b) refer the letter to a debt counsellor, dispute resolution agent, consumer court or relevant ombud.

For each default letter that we send to you, we are allowed to charge you:

- a) fees, called default administration fees; and
b) reasonable and necessary expenses that we incur in delivering the letter to you.

If you have applied for debt review

If you have applied for debt review with a debt counsellor, we may give you notice in writing to end your debt review if 60 days have passed since your application.

15.3 We may charge recovery costs

If we have to enforce our right to recover the amount you owe us, we will charge you collection costs and reasonable legal costs as allowed by the applicable laws

15.4 Addresses where you and we agree to be served notices and processes (domicilia) *SB*

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Any legal document or notice to be served in legal proceedings must be written on paper and served at our respective street addresses. The Electronic Communications and Transactions Act 25 of 2002 does not apply to these documents or notices.

- a) **Your notice address**
You choose the address that you gave on your application form for a product as your notice address for legal notices and processes (for example, a summons). This address is known in law as your *domicilium citandi et executandi*.
- b) **Our notice address**
We choose the following address as our notice address:
5 Simmonds Street
Johannesburg
2001
South Africa
Attention: Head: Legal, SA

You or we may change our notice address by giving each other notice in writing. Any new notice address must be a physical address in South Africa.

15.5 Time periods for notices, including legal notices

Any notice sent under the agreement and under the terms and conditions is treated as being received:

- a) on the date of delivery, if delivered by hand to the physical address;
- b) seven days after the date on which it was posted if it was sent by prepaid, registered post;
- c) on the first business day after the date of delivery if delivered by a recognised courier service;
- d) on the first business day after it was sent if sent by fax.

16 Each term is separate

Each provision of this agreement is separate. If a court or regulator finds that any term or condition is invalid or illegal or cannot be enforced, then removing that term or condition from the agreement does not affect the provisions that remain.

17 No relaxation we grant will affect our rights

We may relax any of the terms and conditions of this agreement at any time and for any reason. However, you must see this as a temporary relaxation as it does not mean that we give up our right to enforce your obligations in the future.

18 Contact information for relevant ombuds

If you have a concern relating to the agreement, and we have not been able to resolve it to your satisfaction, you may contact the relevant industry ombuds or authorities, which are independent from us and provide a service free of charge:

- a) **the National Financial Services Ombud Scheme South Africa (NFO)**, which is an amalgamation of the Ombud for Banking Services, the Short Term Insurance Ombud, the Long Term Insurance Ombud and the National Credit Regulator through the website at www.nfosa.co.za, by telephone at 0860-800-900 or by email at info@nfosa.co.za.
- b) **the Ombud for the Financial Advisory and Intermediary Services Act** through the website at www.faisombud.co.za, by telephone at (012) 762 5000, by fax at (012) 348 3447 or by email at info@faisombud.co.za.
- c) **the Financial Sector Conduct Authority** through the website at www.fsca.co.za, by telephone at (012) 428 8000, by fax at (012) 346 6941 or by email at info@fsca.co.za.

19 South African law governs the agreement

The laws of the Republic of South Africa govern this agreement, and the courts of South Africa have sole jurisdiction, which means the authority to hear and decide disputes

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1 Introducing the terms

- 1.1 The terms form a legally binding agreement between you, our client in whose name we open the business current account, and us The Standard Bank of South Africa Limited (Registration Number 1962/000738/06).
- 1.2 The terms become effective when we open the account. **This means that you agree to the terms and warrant (promise) that you can enter into a legally binding agreement.**
- 1.3 You must know, understand and comply with the terms which apply together with:
- the latest version of the Standard Bank general terms and conditions including any definitions, privacy statement, disclosures and disclaimers that are incorporated by reference into the terms; and
 - the pricing guide and business current account features and benefits on our website.
- 1.4 If there is any conflict between the terms and the general terms and conditions, the terms will apply.
- 1.5 **Pay special attention to the clauses in bold, as they may exclude or limit our liability (responsibility) to you or involve some risk for you.**
- 1.6 **You must make sure that the account is suitable for your needs.**

2 Definitions

The following words have the meanings set out next to them unless the context clearly indicates a different meaning:.

Account	The business current account we open in your name at your request. A business current account is any of the following accounts: a business current account, a MyMoBiz account, a MyMoBiz Plus account, a BizLaunch account or a BizLaunch Plus account.
App	Standard Bank's Mobile Banking Application
Bank, we, us	The Standard Bank of South Africa Limited (Registration Number 1962/000738/06) and its successors or assigns.
Card	Any bank card we issue to you, including any additional or replacement card.
Internet Banking	means Standard Bank Internet Banking, which is available on our website.
PIN	A confidential personal identification number used for operating on your Account.
pricing guide	The schedule of fees for all our products and services, which is available on our website.
website	means our website at www.standardbank.co.za
you/your	The juristic person who applies for the account or in whose name the account is opened and who may be a sole proprietor.

3 About your account

To use your account on a continuous basis, you must make or arrange for a regular monthly deposit (for example payment of your salary into it).

4 Transacting on your account

- 4.1 We may offer you a debit card to be used for transacting directly on your account.
- 4.2 **If you receive a card to use with your account you must read, understand and comply with the terms and conditions of the card provided, as they will apply when you use the card.**
- 4.3 You will be responsible for the amount of the unauthorised withdrawals if you do not tell us that your Card is lost or has been stolen as soon as you realise it, or that you suspect someone may have your PIN, digital identity or one time pin (OTP).

5 Deposits, transfers and withdrawals

- 5.1 To open an account, you must make the minimum deposit required for this purpose.
- 5.2 You can deposit money into your account in different ways after acceptance of the terms, including through a transfer from any other Standard Bank account.

- 5.3 Deposits into your account might not clear on the day they are made. This means that the money might not reflect in your account immediately. You may treat a deposit as cleared only on the date shown on your statement. This applies even if the money is available to you immediately; or the deposit shows on your account when you access it through Internet Banking or on the App.
- 5.4 You can transfer money from your account into any other Standard Bank transactional or savings account.
- 5.5 You can place debit orders or stop orders on the account.

6 Unauthorised access to your account

- 6.1 **You must do your best to always keep your access details for Internet Banking and the App safe. If you have a card linked to your account, this rule also applies to your card and PIN. If you don't do this, someone could, for example, withdraw or transfer your money out of your account if they manage to get your card.**
- 6.2 **Contact us immediately if:**
- your card is lost or stolen or if you don't get it back from the ATM; or
 - your device that contains card details or access codes to Internet Banking or to the App is lost or stolen or compromised in any other way, for example through a SIM swap, vishing, phishing or smishing.

7 Payments

We will make payments from your account if:

- you instruct us to do so; and
- there is enough money in your account.

8 Stop payments and Debit Orders

You may dispute and/or reverse a stop payment or debit order in writing, telephonically or within the App, where applicable.

9 Fees

You must pay all the fees and charges that apply to your account. These are set out in our pricing guide.

10 Statements

- 10.1 We will email account statements to the email address you have given us or make them available at a branch, on the App or through Internet Banking.
- 10.2 You must check your statement and confirm for yourself that all the information is correct. You have up to 60 days from the date of your statement to tell us if you have a problem with it. We are not responsible if you tell us about any errors or omissions more than 60 days after the statement date.

11 Maintaining a credit balance (as applicable to natural and juristic persons)

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- 11.1 You agree to maintain a credit balance on your account at all times. If your account is not in a credit balance, any amount you owe to us is due and payable immediately.
- 11.2 **If you are in default, this may affect your credit profile.**
- 11.3 **If you do not pay us the amount owing immediately, you will be in default and we will charge you the following:**
- 11.3.1 **interest on such amount from the due date for payment at the maximum interest rate allowed under governing laws as amended, replaced or re-enacted from time to time (governing laws); and**
- 11.3.2 **fees and charges as set out in the full list of fees and charges that apply to your account and published in our pricing guide or on our website.**
- 11.4 If you are in default, we will draw such default to your attention in writing and ask you to resolve the issue.
- 11.5 If you are a natural person, we will propose that you refer the matter to a debt counsellor, a dispute resolution agent, a consumer court or an ombud with jurisdiction. We will follow the relevant default provisions set out in the legislation that governs our relationship. We may give notice to you to terminate any debt review by a debt counsellor. Such notice may be given at any time after 60 business days have passed from the date on which you applied for such review.
- 11.6 If we have to enforce our right to recover the amount you owe us, we will charge you collection costs as allowed by governing laws.
- 12 How we will apply payments**
- 12.1 If you owe us any amount on your account, we will apply (distribute) any funds paid into your account as follows:
- 12.1.1 firstly, towards any amounts you owe us as a result of transactions on your account;
- 12.1.2 secondly, towards interest;
- 12.1.3 thirdly, towards fees.
- 13 Legal protections we have to tell you about**
- This product (account) is covered by the Corporation for Deposit Insurance (CODI). If Standard Bank cannot repay its clients their deposits for any reason, you will have access to the funds deposited in trust accounts that are covered by CODI, up to the limit set out in the Deposit Insurance Regulations made in terms of the Financial Sector Regulation Act. You can find out more about this on the CODI website.
- 14 General**
- 14.1 We may check with any references you gave if the details on your application form are correct.
- 14.2 You must notify us immediately if you are placed under an administration order, sequestrated or liquidated or placed under any other form of insolvency or legal disability, including business rescue.
- 14.3 You must notify us immediately if you receive a notice that your business may be deregistered.
- 15 Questions and complaints**
- If you have any questions about the terms, you may:
- 15.1 phone our call centre on **0860 123 000** (normal charges apply);
- 15.2 send us an email at information@standardbank.co.za; or
- 15.3 follow our complaints process, which you can find on our website at www.standardbank.co.za, by clicking on the "Contact Us" tab.

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